

HOUSE BILL 1643

By Lamberth

AN ACT to amend Tennessee Code Annotated, Section
55-12-126, relative to proof of insurance.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 55-12-126(a), is amended by deleting the subsection and substituting:

(a) Except for suspensions under § 55-12-115, and the proof required as provided in § 55-12-114, a person who is required to provide proof of financial responsibility shall maintain that proof for a minimum of one (1) year, or for the period of the revocation or suspension, whichever is longer. If a person elects to use a policy of insurance and financial responsibility insurance certificate as proof of financial responsibility under this section, then the effective date on the financial responsibility certificate is the date upon which financial responsibility was proven, and financial responsibility must be maintained for the period of the suspension or revocation.

SECTION 2. Tennessee Code Annotated, Section 55-12-126(b)(2), is amended by deleting the subdivision and substituting:

(2) If during the period requiring proof of financial responsibility under subsection (a), the person filed proof of another policy or bond meeting the requirements of this part, then the person's license and registration shall not be suspended or revoked as required in subdivision (b)(1).

SECTION 3. Tennessee Code Annotated, Section 55-12-126(d), is amended by deleting the subsection and substituting:

(d) The department of safety shall release a person's requirement to provide proof of financial responsibility after the expiration of the period required by subsection

(a), if the department of safety's records establish that during the period, the person was not convicted of an additional offense authorizing or requiring the suspension or revocation of the person's license, nor was the person's license suspended, revoked, prohibited, or cancelled due to a separate violation of law. If the department of safety, pursuant to this subsection (d), releases the requirement that a person furnish proof of financial responsibility, and if the person's motor vehicle registration has been suspended or revoked because of the person's failure to furnish that proof, then the commissioner of safety shall request that the commissioner of revenue reinstate the person's registration and, upon payment to the commissioner of revenue of the appropriate motor vehicle registration fees provided by § 55-4-111, § 55-4-112, or § 55-4-113, the registration must be reinstated immediately. Notwithstanding another law to the contrary, this subsection (d) does not apply if there is an unsatisfied judgment based on a motor vehicle accident.

SECTION 4. This act takes effect January 1, 2027, the public welfare requiring it, and applies to offenses committed on or after that date.